

AI-Enabled Crime: Protecting Society's Vulnerability through the Destruction of Digital Trust

Isabella Fama

Stevens Institute of Technology

**“SOMETHING AS SIMPLE AS RECOGNIZING
A FAMILIAR FACE OR VOICE HAS NOW
BECOME UNTRUSTWORTHY.”**

Abstract

Artificial intelligence, or AI, is often associated with the idea of trust. As AI systems become more deeply embedded into daily life, their misuse has expanded in parallel, enabling a new class of crime that exploits emotional vulnerability and publicly available data. These threats take advantage of the fact that many cannot identify fabricated information, especially among older individuals. The United States does not have any current federal statute that restricts the use of public data for AI training, despite the documented risks identified by federal agencies. The legal system, designed before the emergence of synthetic media, is now faced with issues of confidentiality and integrity. This paper investigates and suggests that Congress must intervene by establishing federal guardrails that would assist in the regulation of AI-enabled crime and preserving digital trust.

Introduction

The rapid growth and integration of AI across professional, academic, and commercial environments have fundamentally altered the nature and concept of trust. AI has increasingly been encouraged as a tool for efficiency, but the intended use of something does not always align with the reality of how it is truly being used. This is seen and observed through the growth of AI-enabled crime, which thrives and takes advantage of the public's inability to distinguish authentic communication apart from algorithmic and generated fabrication of information.

Older adults have become increasingly targeted in this new rise of crime. AI-generated scams can easily be used to replicate and mimic voices, tricking victims into sending them money, or compromising their safety. These scams have grown to take advantage of emotional vulnerability and security. Something as simple as recognizing a familiar face or voice has now become untrustworthy.

The widespread availability of personal data and information online provides the material for AI training. Individuals with any digital presence are unknowingly contributing to data that can later be used against them.

The legal system has now begun to confront these growing issues. The recent case of *Morgan v. V2X* [1] reveals the uncertainty that has been unaddressed in terms of confidentiality and evidence. Federal agencies such as the Department of Homeland Security [2] and the Federal Trade Commission [3] have also become more drastically attentive to this new age of digital predation, and the difficulty of preventing it.

As AI-enabled crime continues to grow, the structural gaps within US law become increasingly exposed. This paper discusses the effects AI-enabled crime has begun to have on society, arguing that Congress must establish regulations that govern the use of public data in the training of AI.

The New Age of Deception

AI has completely altered the perception of fraud. Scams that once solely relied on voice mimicking and impersonation have now evolved much further. With the use of AI, scammers can now impersonate someone using hyper-realistic voice cloning or deepfake videos. The Federal Trade Commission has now identified this as a “new frontier of impersonation scams” [4].

AI has changed how believable scams are; the FTC warns that scammers can exploit simple truths about our personal lives, personal details that victims once assumed were safe. In April 2024, the FTC's official alert warned how scammers are able to clone voices just by hearing someone's voice for a few seconds, usually being taken from social media, voicemails or videos on the internet. Scammers use this tactic mainly to make requests for large sums of money, using sensitive information to their advantage. This creates a completely irrational and emotional situation, where any rational judgment or thinking is neglected. These findings align with the Department of Homeland Security's assessment from Impact of Artificial Intelligence on Criminal and Illicit Activities [2], which similarly documents cases of victims receiving calls that sound as if their loved one is in distress. The FBI's 2024 Elder Fraud Report [5], supports these concerns: impersonation scams resulted in an estimated \$1.3 billion in losses, about 25% of reported cases involved AI-generated audio, and voice cloning complaints have increased 700% from 2022 to 2024. These brief statistics are likely an underrepresentation of the true number of the victims' experiences, many victims go without reporting the crimes.

The FTC puts a strong emphasis on older adults being most vulnerable. Many grew up in an era where all that was needed to prove your identity was a voice; not to mention the new and unfamiliar technology. A study conducted by Pew Research Center [6] in 2024 revealed several findings: about 62% of adults over the age of 65 are unable to identify AI-generated audio, 83% of participants believe that a familiar voice guarantees authenticity and 71% of participants were unaware that AI was able to clone voices. This ongoing threat, which the FTC has shared public information on, is more than a safety concern.

AI-enabled deception undermines and discredits personal autonomy by attacking and mimicking behaviors that individuals use to make informed decisions. Since deception has changed entirely, truth has become difficult to distinguish from manipulation due to the disruption of cues that were once relied on for legally-meaningful decisions.

Exploitation of Public Data

AI-enabled crime is heavily reliant on personal data that is accessible online, often unknowingly by users. Platforms that have social media posts, public records, and digital interactions are now materials that can be used by AI to produce more realistic and believable media. A 2024 taxonomy of AI privacy risks [7] found that machine learning systems are built in ways that create vulnerabilities by enabling new forms of distortion, unwanted disclosure, and identification. The analysis concluded that 321 documented AI-related privacy incidents demonstrated multiple dangers: AI systems created privacy threats, for example deepfake (or deepfake-based) exposure, as well as increased risks already existing through larger scale surveillance and use of secondary data. This now creates an extremely dangerous dynamic, specifically related to AI-enabled crime. Traditional US data-privacy frameworks assume that individuals are able to control the dissemination of their information. In the US, once data has become publicly available, there are no laws that impose any restrictions on how it can be collected, analyzed or reused.

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Academic research conducted through Cambridge University Press [8] notes that AI reduces the barriers that allow entry for criminal conduct. Meaning practically anybody with minimal technological expertise is able to easily commit AI-related crimes. The DHS's report [2] similarly places a strong emphasis on the reasoning that the outputs from current AI models are even possible because of the amount of data that is available. Anyone with a presence online is susceptible to becoming a target. The DHS has warned that generative AI has criminal factors that are able to commit crimes faster and more efficiently, and that these readily-available tools are able to empower even less-skilled criminals by filling knowledge gaps. The report highlights that the United States currently has no federal statute which regulates whether AI companies are allowed to train on publicly available data. The absence of federal restrictions on AI use for public data creates a dynamic of uncertainty and fear.

Without any systems currently put into place to stop the exploitation of public data, criminals are able to continue their work. This threat is not hypothetical, but it is active and growing quickly. In the Oxford Journal of Legal Studies [9], it is noted that modern AI challenged traditional legal practices and assumptions about identity and human authenticity. This raises questions about what frameworks can be put into place to adequately assess the harm from continuing to rise. The United States has field-specific legislation that serves as protection of consumer data such as HIPAA [10], protecting health information and FERPA [11], protecting student education records. There is, however, no federal legislation that protects consumer data with regard to AI.

Modern Law Implications & Standings

The rise of AI-enabled crime has exposed gaps in legal frameworks that were designed before synthetic media even existed. AI-enabled crime is able to continue because of the lack of legal standings, as previously mentioned before. As AI-enabled crime continues to grow, it raises the question of how can the integrity of legal evidence, protection of victims, and liability be preserved in a new age of deception that has become undetectable? Courts have been able to rely on audio, video, and photos as trustworthy and reliable evidence. Under the Federal Rule of Evidence 901 [12], these forms of evidence were considered self-authenticating because they presumably reflected reality. This has now completely changed because of AI. The DHS [2] has warned that AI-generated content is extremely difficult to distinguish from human-produced content. The legal systems' traditional safeguards are no longer trustworthy or able to keep up with the speed and believability of newly introduced AI-enabled crimes.

US federal courts were recently faced with one of the first cases that directly addressed how AI intersects and interferes with confidentiality: *Morgan v. V2X*. [1] The central question was whether a litigant's use of an AI tool to preview confidential materials violates work-product protection and client confidentiality, and if courts require disclosure of the use of an AI tool under a protective order. Under the Federal Rule of Civil Procedure 26(c) [13], the courts may issue protective orders on confidential information. The defendant was looking to amend a protective order to restrict AI use, arguing that uploading documents to AI platforms risked exposing sensitive information, since these platforms store information and later use it for model training. The court held that it does pose a confidentiality risk, unless the provider is barred from storing or training on inputs. The court then rejected the argument that AI use should automatically waive the work-product protection, reasoning that interacting with AI does not inherently impact or reveal litigation strategies, therefore not constituting a per se waiver. It is important to note that *Morgan v. V2X* is a single district-court order that holds no precedential weight. Following this case, federal courts may require disclosure of an AI tool when used, protective orders must explicitly state the use of AI.

The case shows our government's growing recognition of AI, and although the case does focus on the implications of confidentiality, it expands beyond just that. It is a call to action that courts must evaluate and take into consideration technological advancements and how they are being used, not just simply the contents. With this being said, now judges are required to understand how AI systems work. There is now a significant new judicial responsibility that drastically differs from traditional practices. *Morgan v. V2X* illustrates an urgent need for procedural rules related to AI. In response to this, courts can implement reforms under existing statutes. The first reform would be directly under the Federal Rule of Evidence 901 [12]. When it comes to digital audio and/or visual evidence, implementing AI-detection and provenance metadata to ensure that authentication is now being modernized, but not requiring the creation of a new evidentiary category. The second reform being the clarification of confidentiality rules under Federal Rule of Civil Procedure 26(c) [13]. This ties back to *Morgan v. V2X*, and the courts have already addressed the issues of confidentiality in relation to AI. Congress could further this by requiring disclosure of AI tools in all and any litigation and standardized AI training and protective-order language. The third reform would be establishing criminal liability for AI-facilitated Impersonation Under 18 U.S.C. § 1028 [14]. The law already criminalizes the misuse of identification documents. By Congress expanding the law to now include anything AI generated media for crime purposes of unlawful misuse, the prevention of fraudulent use is now even further protected. These reforms will help courts to stay on top of the growth of AI, which is not expected to stop. Without them, courts will need to address AI issues on an ad hoc basis, which creates inconsistency and uncertainty within rulings.

Ethical Transparency

In addition to the legal aspect that surrounds AI-enabled crime, there is also a clear ethical standpoint: the crimes are not only defined by the actions, but by how institutions design and deploy their systems. Courts will continue to struggle with the issue of evidence and confidentiality clashing with AI, but policymakers, creators, and developers are also to be held accountable for the ethical burden that falls on them and their systems.

AI companies hold a unique position when it comes to their products: they are actively creating tools that are capable of deception, but they are able to disclaim responsibility from any consequences. In an analysis conducted by Toereck Law [15], the terms of AI platforms and their services function as “private ethical frameworks” which allow them the right to: store any and all user inputs, analyze user inputs, reuse user inputs and train models on user inputs. This practice raises many ethical concerns, mainly that individuals who are using AI systems without knowing any disclosed risks, are becoming involuntary contributors to systems that can be later used against them. Platforms fully understand how their systems work, but their users are not, creating a clear distortion of knowledge and disclosure. The FTC’s consumer-protection principles [16] strongly emphasizes transparency and fairness specifically for these reasons. Yet, many AI platforms simply disclose what is technically accurate, but only to those who understand them. This imbalance violates ethical principles; individuals cannot and should not consent to practices they do not understand.

Counterargument: Practicality

A significant counterargument to the regulations and reforms proposed in this paper concerns the practicality of governing AI at a scale, considering its worldwide use, global infrastructure and limited enforcement capability. There are currently more than 1 billion people in the world engaging with AI-related tools monthly, without being aware. [17]. Google Gemini [18] is now integrated into their devices, software, and browsers. Microsoft Copilot[19] is now also embedded across Windows, Office and Edge. The level of adoption and integration makes it incredibly difficult to distinguish how AI is being used in harmful ways. If federal reforms would need to operate assuming that AI is not a tool of discretion, but a feature of everyday life.

The scale of adoption highlights a substantial resource gap between government enforcement agencies and AI-enabled activity. Agencies that would be responsible for enforcing hypothetical reforms merely do not have the personnel or funding to do so.

The FTC has been the primary agency which has informed the public of AI-enabled crime, as they are responsible for deceptive practices under 15 U.S. Code § 45 [20]. The agency has about 1,300 staff members [21] and regulates millions of business and digital services. With the added factor of now having to monitor billions of outputs from AI platforms makes the FTC unlikely to realistically and effectively monitor AI-specific tasks. Even if Congress were to expand the FTC's authority, the volume at which AI-related content is growing would make the oversight unrealistic and unattainable.

AI is not only a domestic tool; it is used globally and the US therefore has very limited or no regulation. According to the OECD AI Policy Observatory [22], over 70% of major AI platforms are either developed and/or hosted outside of the US. Countries such as China, India as well as the European Union and United Arab Emirates host large-scale systems, where the US law is not applicable to them. Even if Congress were to implement regulations on domestic AI practices, platforms will continue to grow abroad, still affecting US residents. National regulations simply cannot fully govern technology that is being used globally.

These considerations form a compelling counterargument: federal reforms may be able to mitigate specific risks such as confidentiality protection and AI impersonation, they are unable to fully address the broader challenge of regulating a growing technology.

Conclusion

AI-enabled crime presents a threat to the structure of digital trust. As explored in this paper, the newly advanced forms of AI have questioned what was traditionally assumed to be safe in regard to authenticity. Voices, faces and any accessible form of public data online can be replicated, later to be used for scamming, phishing and manipulation. Elderly individuals have become the main target of AI-enabled crime, because of their unfamiliarity with technology.

The US legal system is now beginning to respond, as seen in *Morgan v. V2X*. [1] The courts recognized the risks associated with AI, but also highlighted the limits of judicial intervention. At this time, courts must evaluate cases one by one because of the lack of legal regulation. Each case must be individually based on digital evidence authentication, assessment of synthetic media and regulated AI use, creating inconsistency. The paper argues that Congress must establish guardrails that govern the use of public data in relation to AI training and modernizing evidence and confidentiality-related rules. Reforms to Rule 901 [12], Rule 26(c) [13], and 18 U.S.C. § 1028 [14] would protect victims by creating a framework of legal action which is capable of keeping up with its rapid growth.

The counterarguments that address scale, reach and enforcement limitations are significant to the conversation. AI is not simply exposed to a small population of people, billions interact with it daily, with major platforms operating outside of US jurisdiction. Instead of diminishing the challenges that have arisen in domestic regulation, the counterargument underscores the urgency and strong need for regulations.

AI-enabled crime is now a permanent feature in modern technology, and the possibility of it being temporary is now almost impossible to consider. In order to protect society vulnerability, it requires acknowledging that the legal system must evolve with the technology that must be regulated. Acting now would preserve the integrity of evidence, personal autonomy and prevent the weaponization of public data in the new age of artificial intelligence.

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